

24CV02783 Global Assets Liens & Foreclosures LLC vs Alpha Core Inc

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-06-29

Motion: Right to Attach

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Tentative Ruling: Global Assets Liens & Foreclosures LLC vs Alpha Core Inc

Case Number

24CV02783

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 06/29/2026 - 10:00

Nature of Proceedings

Right to Attach

Tentative Ruling

On May 20, 2024, plaintiff Global Assets Liens & Foreclosures, LLC, (Global) filed its complaint against defendant Alpha Core, Inc. (Alpha) asserting claims for breach of contract and common counts. A default was originally entered against Alpha on January 28, 2025. On February 20, 2025, Alpha filed its motion to set aside the default. On August 4, 2025, the court granted Alpha's motion and set aside the default. On September 18, 2025, Alpha filed its answer to the complaint. In its motion to set aside default, in its answer, and in subsequent documents, Alpha has appeared by counsel, attorney Sydney Hall, whose office address of record is in San Mateo, California.

On March 10, 2026, Global filed its application for right to attach order and for issuance of writ of attachment, together with supporting papers. All proofs of service of these papers shows service by mail solely on Alpha's address in Oakland, California. "Except for service of a subpoena or other process to require the attendance of the defendant or service of a paper to bring the defendant into contempt, if the defendant has an attorney of record in the action, service shall be made on the attorney rather than on the defendant." (Code Civ. Proc., § 482.070, subd. (e).) There is no proof of service showing service, timely or otherwise, on Alpha's attorney of record. Accordingly, hearing on this application and the case

management conference also set for this date are continued to August 31, 2026, to allow for service by plaintiff of notice of the application, and notice of continuance of the hearing and case management conference.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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